

GZ: 2022-0.930.971 dated June 21, 2023 (Case Number: DSB-D202.321)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the application of N*** Verkehrsforschung GmbH ("Applicant"), represented by Attorney Dr. Johann E***, LL.M., dated December 28, 2022, for the granting of approval pursuant to § 7 para. 3 DSG as follows:

1. The Applicant is granted permission to collect and evaluate personal data in the form of (video) recordings in public places in public road, bus, and rail transport within Austria as part of a scientific research project for the purpose of generating test data for algorithms in the field of (partially) autonomous driving and to enhance road safety and vehicle safety.
2. To safeguard the legitimate interests of the affected individuals in the processing approved in point 1, the following conditions are imposed:
 - a. The identification of the test vehicles used must also be provided in German.
 - b. The image resolution must be chosen so that, as far as possible, no faces of the affected individuals or vehicle license plates are recognizable. Personal data will only be processed from the accessed data sets to the necessary extent for the purposes of the activity approved in point 1.
 - c. The transmission of image and video data to third parties is only permitted in the event of a governmental order.
 - d. Access to the image or video recordings containing personal data must be secured by the Applicant in an appropriate manner in accordance with Art. 32 para. 1 GDPR, e.g., by locking (for paper recordings) or by password (for electronic recordings).
 - e. Access to and evaluation of image or video recordings may only be conducted by specific, trained employees of the Applicant or their processors who have been informed in accordance with § 6 DSG, and whose reliability in handling data is ensured in accordance with § 6 para. 3 DSG.
 - f. Publication of the video data or test results may only occur in anonymized form.
3. In accordance with § 78 of the General Administrative Procedure Act 1991 (AVG), Federal Law Gazette No. 51/1991 as amended, in conjunction with §§ 1, 3 para. 1 and TP 1 of the Federal Administrative Fees Regulation 1983 (BVwAbgV), Federal Law Gazette No. 24 as amended, the Applicant must pay an administrative fee of EUR 6.50.

Legal Basis: § 7 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Art. 13, 25 in conjunction with Art. 32, Art. 89 of Regulation (EU) 2016/679 (General Data Protection Regulation – GDPR), Official Journal No. L 119 of May 4, 2016, p. 1; §§ 1, 5, 6 and 7a Regulation of the Federal Minister for Climate Protection, Environment, Energy, Mobility, Innovation and Technology on Framework Conditions for Automated Driving (Automated Driving Regulation – AutomatFahrV), Federal Law Gazette II No. 402/2016 as amended; § 78 of the General Administrative Procedure Act 1991 (AVG), Federal Law Gazette No. 51 as amended.

REASONING

A. Submissions of the Applicant

In a submission dated December 28, 2022, the Applicant applied for approval pursuant to § 7 para. 3 DSG and essentially stated as follows:

The Applicant is a leading research center for the automotive and rail industry and investigates (partially) automated driving functions in public places in public road, bus, and rail transport within Austria as a non-university research institution. The Applicant's research includes the development,

validation, testing, and operation of fail-safe Automated Driving architectures and has committed itself to ensuring a

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to ensure the safe coexistence of highly (partially) automated vehicles with conventional vehicles in road traffic. The aim of the research project is to further develop (partially) automated driving functions and to increase and improve both vehicle safety and road safety through research and development of new automated drive technologies. It is planned that the (partially) automated vehicles used by the applicant will be tested within Austria on a predefined route, with the first test drives taking place in the city of O***, specifically in the southern part of O*** in the districts of L*** and B*** parallel to T*** street. During these test drives, the (partially) automated vehicle will perform automated driving tasks between a public transport hub and a shopping center. The development and testing of the applicant's products necessitate the recording of image data on public roads within Austria as part of the initial test projects, in order to test the specific local traffic conditions. The orientation of the (partially) automated vehicles will be carried out using vehicle sensors (Lidar, Radar) as well as pre-recorded high-precision maps. In the vicinity of bus terminals and traffic light systems, communication with the infrastructure (C-ITS) will also be employed to enhance detection accuracy.

To generate test data for algorithms in the field of (partially) autonomous driving, it is specifically planned to collect and analyze personal video data with cameras in public places in public road, bus, and rail traffic within Austria. This is intended to provide insights into the questions of "how automated driving can be safely and efficiently conducted in areas with pedestrian traffic, how public transport and an automated shuttle for passenger transport can best interact, what challenges exist in automated driving along a predefined route in real operation, and whether the position and direction of movement of road users can be better recognized through video data, image data including audio (in combination or as a supplement to other sensors)."

The recording of the material will be carried out with the help of several cameras installed on the exterior of the test vehicles operated by the applicant, allowing for up to 360° recording of public road, bus, and rail traffic. In addition, the applicant plans to install a camera in the interior of the deployed vehicles, which will capture public road, bus, and rail traffic from the driver's perspective. Furthermore, an image of the dashboard (e.g., gauge display, control tablet) will be taken inside the vehicles to document and illustrate the functionality of the system.

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The collected video recordings aim to detect traffic objects (road markings, traffic signs, bridges, etc.) and road users (single and double-lane vehicles, cyclists, pedestrians, etc.). Since it is intended to make video recordings in public road, bus, and rail traffic along a predefined route, it is unavoidable to also collect personal data. It cannot be ruled out that the recorded video data may include images of individuals, vehicle license plates, or other personal data. However, the identity of road users is not significant for the applicant. The fact that individuals must be recognizable as road users is, however, essential for the research purpose, especially since the applicant must ensure that the algorithms in (partially) autonomous vehicles can reliably recognize individuals as such.

The applicant states that the video data obtained in this manner serves as a basis for researchers to make corresponding categorizations, which will be classified with overarching terms (e.g., classification as "motor vehicle," "pedestrian," "cyclist"). These will subsequently serve as reference material for the verification of numerous algorithms, whereby continuous development and improvement in the field of (partially) automated driving and, in particular, the associated road safety can be ensured through its repeated and long-term use.

The data protection impact assessment conducted by the applicant in accordance with Art. 35 GDPR has concluded that the risks can be reduced to an acceptable level through appropriate data protection measures.

The test vehicles used by the applicant are clearly and prominently marked as autonomous vehicles

(e.g., white vehicle with blue lettering "Automated Drive" on both sides). Additionally, visible signs are affixed to the test vehicles that inform about the applicant as the data controller and the purpose of the video recordings. Furthermore, the sign contains a corresponding link to the applicant's website as well as a QR code, through which affected individuals can be informed about the data processing carried out. Both the link and the QR code lead to further information about the data processing and the research activities of the applicant. Additionally, the driver in the vehicle carries a sign that, in addition to the notice on...

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Video recordings, including purpose, legal basis, and data of the responsible party, shall be made available to any affected person at any time.

The principles of data security are ensured, as the applicant is, on one hand, a certified entity according to the TISAX procedure ("Trusted Information Security Assessment Exchange"). On the other hand, the applicant has implemented appropriate security measures regarding physical access controls to personal data (for paper recordings through locking, for electronic recordings through password protection). Access to and insight into the raw data and the evaluation of image or video recordings shall only be granted to specific, trained project staff of the applicant who have been informed in accordance with § 6 DSG, and whose reliability in handling data is ensured in accordance with § 6 para. 3 DSG. Data protection training is conducted regularly for the project staff of the applicant. It is intended that corresponding access rights be granted by the project manager in coordination with IT, whereby access to the video data is secured through the user's named registration and password assignment. It is expressly prohibited to conduct accesses or processing on private data processing devices. Furthermore, the applicant has established IT security guidelines that must be observed by the project staff. The IT systems of the applicant are protected by logging system usage.

The applicant deletes or anonymizes personal data as soon as it is no longer needed for achieving the research objectives or for experimental development, but in any case upon completion of the respective research project, so that traceability to individual persons is not possible. A traceable documentation of the deletion and anonymization is carried out by the applicant.

The applicant plans to make selected video recordings and their classification available to other scientific institutions with which it cooperates for research purposes in this area. Video data or other personal data transmitted to cooperation partners are subject to strict purpose limitations (i.e., for research and development in the field of autonomous driving). The cooperation partners are defined by the applicant in the context of framework agreements (e.g., COMET K2 Agreement - framework contract). To the extent that it is sufficient for the specific research purpose, the applicant will remove personal references, particularly obscuring individuals and identifiers of the recorded vehicles, before making them available to cooperation partners. If the transmission of anonymized video recordings is not possible because it would result in the algorithms to be tested or developed being unable to reliably recognize individuals, the

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The applicant shall ensure that a transmission only takes place where the interests of identifiable persons, who require the protection of personal data, do not outweigh the interests of the applicant or other scientific institutions in developing secure algorithms for (partially) autonomous driving.

In the event that personal data is transmitted to cooperation partners in countries outside the European Union (EU) for which there is no adequacy decision by the European Commission, the applicant will conclude standard contractual clauses with appropriate technical and organizational measures to ensure that the personal data is processed in accordance with European data protection standards.

A traceable documentation of the transmissions by the applicant is planned. Before a planned data transmission, the data protection team assembled by the applicant will be informed, and the legality of the transmission under data protection law will be verified.

If the applicant intends to publish video data or test results to bring current research work closer to the general public, this will occur exclusively in anonymized form.

The applicant states regarding the existence of the prerequisites according to § 7 Abs. 3 DSG that obtaining consent from the affected persons is impossible due to lack of reachability or is associated with disproportionate effort. The affected persons are a group whose current addresses are either completely unknown to the applicant or can only be determined with disproportionate effort, as they can only be identified and contacted afterwards. Furthermore, it cannot be ruled out that persons from abroad are also affected by the data processing, which additionally complicates the identification of the individuals depicted in the images. Therefore, obtaining consent would cause a disproportionate effort within the meaning of § 7 Abs. 3 Z 1 DSG.

The existence of a public interest is thus given, as the research project promotes vehicle safety and road safety in connection with (partially) automated driving functions.

Regarding the professional suitability of the applicant, it is stated that it is a research institution for the automotive and railway industry, which guarantees that the collection and processing of video data in Austria is carried out by qualified personnel. Access to and evaluation of personal data is only conducted by specific, trained employees who have been informed in accordance with § 6 DSG, and whose reliability in handling data is ensured in accordance with § 6 Abs. 3 DSG.

As far as the classification of image data requires the assistance of processors, the applicant only engages those who can ensure compliance with data protection regulations and concludes the necessary data processing agreements in accordance with Art. 28 GDPR. Furthermore, the individuals employed by these processors are contractually obligated to treat personal data confidentially. Additionally, they must demonstrate to the applicant that they have implemented appropriate technical and organizational measures to protect personal data.

The declaration of a person authorized to dispose of data according to § 7 Abs. 4 DSG is not required, as the data necessary for research purposes is collected by the applicant itself.

B. Findings of Facts

The Data Protection Authority bases its decision on the facts documented in the files under point A.

C. Legally, this results in:

C.1. Regarding Decision Point 1

C.1.1. General

Since the applicant plans to conduct test drives in the area of autonomous driving in Austria and in this context also records video data, an approval from the Data Protection Authority in accordance with § 6 AutomatFahrV in conjunction with § 7 Abs. 3 DSG is required.

§ 7 DSG regulates data processing for public interest archival purposes, scientific or historical research purposes, or statistical purposes. Image data is also (identifiable) personal data within the meaning of Art. 4 Z 1 GDPR. At the same time, these image data generally do not involve the processing of special categories of personal data within the meaning of Art. 9 GDPR (cf. e.g., DSB of June 7, 2018, GZ DSB-D202.207/0001-DSB/2018, with references).

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The investigation and evaluation of image data for the purposes of scientific research are subject to the special provision of § 7 DSG.

From the established facts, it follows that the prerequisites of § 7 Abs. 1 DSG (publicly accessible data or data that has already been collected for other investigations or purposes, or pseudonymized data) are not met.

Regarding the conditions that § 7 Abs. 2 DSG attaches to the processing of research-related data (research purposes in the public interest and either a legal basis (Z.1), or consent (Z.2) or approval from the data protection authority (Z.3) in accordance with § 7 Abs. 3 DSG), it initially appears that § 7 Abs. 2 Ziffer 1 DSG is fulfilled. For it is undoubtedly in the public interest to use automated vehicles for passenger transport, and the AutomatFahrV provides a legal basis for the testing and use of such

vehicles. However, § 6 leg. cit. under the heading "Test Data" stipulates that for video data collection outside of an accident data storage, approval from the data protection authority in accordance with § 7 Abs. 3 DSG is required.

Since neither the prerequisites of § 7 Abs. 1 DSG nor those of § 7 Abs. 2 Z 1 and Z 2 DSG are met, the planned use of data can only occur based on approval from the data protection authority in accordance with § 7 Abs. 2 Z 3 in conjunction with § 7 Abs. 3 DSG.

C.1.2 Result

Since the application of the responsible party for the issuance of a permit was granted, the legal justification according to § 58 Abs. 2 AVG could be omitted.

C.2. Regarding Item 2

Condition 2.a serves to ensure the information obligation of the responsible party in accordance with Art. 13 GDPR. Although the responsible party has submitted images of the signs with which the test vehicles are equipped, these signs contain, in addition to a QR code leading to the privacy policy of the responsible party, the purpose "autonomousdriving." According to Art. 8 B-VG, the official language in Austrian territory, for which the responsible party has applied for this permit, is German. Therefore, the data protection authority additionally requires that the indication of the purpose of data processing ("autonomousdriving") also be included in German on the signs (e.g., "Autonomes oder Automatisiertes Fahrzeug").

Conditions 2.b and 2.c particularly refer to the possibility that image data may be secured, for example, after a traffic accident (see also the transmission authorization of the accident data storage according to § 5 Abs. 3 AutomatFahrV). The condition is intended to clarify that such transmission must remain the only case in which the unprocessed, unedited (non-anonymized) original data set may be transmitted. For this reason, any planned data transmission to third parties (cooperation partners) is expressly prohibited (see also the penultimate and last sentence of § 6 of the AutomatFahrV).

Conditions 2.d to 2.f serve data security in the processing of data as well as the safeguarding of data confidentiality.

C.3. Regarding Item 3

This item (administrative fee) is based on the cited provisions. The issuance of a permit for data processing for scientific research purposes is not covered by the fee and charge exemption clause of § 69 Abs. 6 DSG.

This amount is to be paid into the account *** in the name of the data protection authority. The purpose of use should include the business number and the date of completion.

Thus, a decision was made accordingly.